

Pulsetto Affiliate Program Terms and Conditions

Date of Last Update: 2025 02 01

PLEASE READ THESE TERMS AND CONDITIONS ("Agreement") CAREFULLY BEFORE PARTICIPATING IN THE PULSETTO AFFILIATE PROGRAM ("Program"). BY ENROLLING IN THE PROGRAM, THE AFFILIATE ("You" OR "Affiliate") ACKNOWLEDGES THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THIS AGREEMENT. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE DO NOT APPLY FOR OR PARTICIPATE IN THE PROGRAM.

1. Definitions

For purposes of this Agreement, the following terms shall have the meanings indicated below:

1.1 Affiliate: An individual or entity accepted into the Pulsetto Affiliate Program that agrees to promote Pulsetto's products and services in accordance with this Agreement.

1.2 Company: Pulsetto, including its affiliates, successors, and assigns.

1.3 Referral Link: A unique hyperlink provided by the Company to the Affiliate for tracking traffic and sales generated by the Affiliate.

1.4 Coupon Code: A unique code issued by the Company to an Affiliate for promotional discounts, which must be used together with the Referral Link to qualify for commission attribution.

1.5 Commission: The fee or percentage paid by the Company to the Affiliate for Revenue-Generating Activity as defined in this Agreement.

1.6 Affiliate Portal: The online platform provided by the Company where the Affiliate can access training materials, track performance, and manage their account.

1.7 Branding Guidelines: The set of standards and rules provided by the Company that dictate the use of its logos, images, trademarks, and other branding elements.

1.8 Revenue-Generating Activity: Any action (such as a sale or sign-up) that qualifies for commission payment (as agreed with the Company) when tracked by the Company.

1.9 Active Account: An Affiliate account that is not suspended, terminated, or otherwise restricted and is in good standing.

1.10 PPC (Pay-Per-Click): An advertising model in which the Affiliate pays for each click on their advertisement.

2. Scope of the Agreement

This Agreement governs the rights and responsibilities of both the Company and the Affiliate in connection with the Affiliate's promotion of Pulsetto's products and services. It outlines the activities, responsibilities, and obligations of both Parties, including marketing efforts, compliance with guidelines, and usage of provided resources.

3. Program Enrollment and Approval

3.1 Enrollment Criteria:

- The Affiliate must complete the application process through the Affiliate Portal and meet the criteria specified by the Company.
- The Company reserves the right to accept or reject any application at its sole discretion.

3.2 Approval Process:

- Upon acceptance, the Affiliate will receive access to the Affiliate Portal, training materials, and other resources.
 - Enrollment does not create any joint venture, partnership, agency, or employment relationship.
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4. Domain Usage

4.1 Permitted Domains:

- Affiliates may promote Pulsetto only on domains they own or on which they have explicit permission to use the relevant content.
- Affiliates are strictly prohibited from incorporating "Pulsetto" or any confusingly similar variation into any part of their domain name without prior written consent.
- Affiliates shall not register or use domain names, subdomains, or URLs that include "Pulsetto," its affiliates' names, trademarks, or any variations, misspellings, or derivatives

thereof, unless expressly authorized in writing.

4.2 Subdomains and Microsites:

The use of subdomains or creation of microsites for promoting Pulsetto is prohibited unless prior written approval is obtained.

4.3 Content Accuracy and Compliance:

All websites or landing pages used for promotion must provide accurate, current, and clear information about the Company's products and services. The Company reserves the right to require modifications or removal of any non-compliant or harmful content.

5. Coupon Code Policies

5.1 Issuance and Use:

- The Company may issue unique coupon codes for promotional discounts.
- In exceptional cases, coupon codes may be issued with an unlimited validity period, provided the arrangement is documented and approved in writing.

5.2 Exclusivity and Restrictions:

Coupon codes are for the exclusive use of the designated Affiliate and must not be disseminated through unauthorized channels. Violations may lead to immediate termination of participation and forfeiture of commissions.

5.3 Usage and Attribution:

Unless otherwise agreed in writing, a sale will not be attributed solely to coupon code usage. To qualify for commission, the coupon code must be used in conjunction with the Affiliate's unique Referral Link. Failure to combine both may result in non-attribution of the sale.

5.4 Formatting and Branding:

There are no additional mandatory formatting or branding requirements for coupon codes beyond the guidelines set above.

6. Brand Bidding and Advertising

6.1 Trademark and Keyword Bidding Restrictions:

- The Affiliate shall not purchase search engine or other PPC keywords that include "Pulsetto" or any affiliated trademarks, variations, misspellings, or derivatives.
- The Affiliate is further prohibited from bidding on keywords such as "Pulsetto + coupon code," "Pulsetto + discount," "Pulsetto + promo," or similar terms that may mislead users

or suggest an official partnership.

6.2 Advertising Standards and Approval:

- All advertising materials (online or offline) must adhere to the Company's Branding Guidelines.
- Advertisements must accurately represent the Company's products and services and include a statement that Pulsetto is not a medical device.
- The Company reserves the right to pre-approve all ad copy and promotional materials and may request modifications as necessary.

6.3 Permitted Exceptions:

Exceptions to the above restrictions may be granted on a case-by-case basis when the Company collaborates with an Affiliate on a joint campaign. Such exceptions must be pre-approved in writing and will be governed by a separate agreement.

6.4 Company provided materials:

Affiliate shall not misuse the advertising materials provided by Company in case materials used in advertisements are modified after they were sent to the Affiliate then Affiliate shall be responsible for the compliance with applicable laws (for the avoidance of doubt: size-related modifications to suit specific platforms shall not be considered substantive changes).

6.5. Monitoring and Enforcement:

The Company reserves the right to monitor all advertising activities. Non-compliance may result in immediate termination, forfeiture of commissions, and/or other legal remedies.

7. Commission Structure and Payment Terms

7.1 Compensation Model:

The Program operates on a Cost Per Action (CPA) basis. Specific CPA rates, traffic considerations, and thresholds will be set forth in writing between the Company and the Affiliate.

7.2 Tracking, Locking Period, and Cookie Window:

- All qualifying actions will be tracked by the Company.
- Commissions for a given month will be locked for 30 days after month-end to account for returns or disputes.
- The conversion tracking cookie will be active for 14 days from the click date.

7.3 Payout Schedule:

Approved and locked transactions will be paid 20 days after the conclusion of the lock period. The Company may modify the payout schedule with prior notice.

7.4 Dispute Resolution Regarding Payments:

Any disputes regarding commission payments must be submitted in writing within 30 days of the payment date. The Company may withhold payment pending an investigation of discrepancies or suspected fraudulent activities.

8. Intellectual Property and Content Approval

8.1 Use of Company Intellectual Property:

- Affiliates may use Pulsetto's logos, images, and other branding materials only with prior written consent.
All promotional materials incorporating Company intellectual property must adhere to the Branding Guidelines.
 - If any advertising materials will be provided by Affiliate then Affiliate represents and warrants that the Materials will not infringe upon any third-party copyright, patent, trademark, trade secret, or other proprietary, intellectual property or privacy rights and that it owns or has the legal right to use, distribute and display, and to permit the use, distribution and display of, all content, intellectual property, copyrighted materials.
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9. Affiliate Responsibilities

9.1 Resources and Support:

The Company will provide access to the Affiliate Portal, training materials, and support resources. Affiliates may contact the Company's representative for assistance if needed.

9.2 Promotion and Marketing Efforts:

The Affiliate agrees to use its best efforts to promote Pulsetto's products and services and to bear all associated costs unless otherwise determined by the Company.

9.3 Prohibited Conduct:

The Affiliate shall not:

- (i) Use malware, spyware, or aggressive advertising/marketing methods.
- (ii) Make false, misleading, or disparaging statements about Pulsetto or its affiliates.
- (iii) Solicit customers to discontinue using Pulsetto's services.
- (iv) Copy or mirror the appearance, functionality, or content of Pulsetto's websites or trademarks.
- (v) Engage in practices that harm Pulsetto's reputation (including unsolicited emails or low-quality marketing).

- (vi) Promote sexually explicit, violent, discriminatory, or otherwise illegal content.
- (vii) Infringe upon any third-party rights.

9.4 Industry Standards and Compliance:

The Affiliate shall conduct all activities in accordance with the highest industry standards

The Affiliate shall include all necessary legal disclaimers and notices to comply with applicable laws and regulations (e.g., GDPR, CCPA).

Affiliate shall comply with all applicable laws in its advertising campaigns. Affiliate is solely responsible for any and all liability arising out of or relating to any ads. Further, Affiliate is solely responsible for any and all liability arising out of or relating to advertising campaign, ads placement.

9.5 Active Account Requirement:

The Affiliate's account must be active (i.e., not suspended, terminated, or restricted) during any revenue-generating activity. No commissions will accrue for actions taken while the account is inactive.

9.6 Use of Referral Links and Redirects:

All traffic must be directed via the proper Referral Link. The use of redirect methods (e.g., "click to reveal" links, domain forwarding, or direct linking that bypasses Pulsetto's servers) is prohibited unless expressly authorized.

9.7 Notification of Third-Party Claims:

The Affiliate shall promptly notify the Company of any information that could reasonably lead to claims, demands, or liabilities by a third party.

9.8 PPC and Domain Purchase Restrictions:

The Affiliate shall not purchase PPC keywords or register domain names that include "Pulsetto" or affiliated marks, except if pre-approved in writing.

9.9 Responsibility for Subcontracted Services:

The Affiliate remains solely responsible for fulfilling all obligations under this Agreement, including those performed by any subcontractors or third parties.

9.10 Privacy and Data Protection:

Participation in the Program constitutes acceptance of the Company's Privacy Policy and any other applicable data protection agreements.

9.11 Eligibility for Payments:

The Affiliate or its representative must be of legal age to receive payments under this Agreement.

9.12 Amendments to Affiliate Responsibilities:

The Company reserves the right to amend or modify these responsibilities at any time. Notice of amendments will be provided via email or the Affiliate Portal, and changes will take effect 30 days after notice. If the Affiliate does not agree with the changes, they may terminate their participation per the termination procedures outlined herein.

10. Termination and Suspension

10.1 Termination by the Company:

The Company may terminate or suspend the Affiliate's participation immediately, with or without cause (including any breach of this Agreement). Upon termination, the Affiliate must cease all use of the Company's trademarks, intellectual property, and promotional materials.

10.2 Termination by the Affiliate:

The Affiliate may terminate participation at any time by providing written notice to the Company. Termination will not affect the Company's obligation to pay commissions accrued prior to the effective termination date.

10.3 Consequences of Termination:

Upon termination, the Affiliate's access to the Affiliate Portal and other resources will be revoked, and any outstanding commissions will be paid according to the payout schedule, subject to the lock period.

11. Modifications and Amendments

11.1 Amendment Process:

The Company may modify or update this Agreement at any time in its sole discretion. Notice of material changes will be provided via email and/or the Affiliate Portal. Amendments will take effect 30 days after notice. Continued participation after amendments constitutes acceptance of the revised terms. If the Affiliate disagrees, they may terminate their participation as specified herein.

12. Liability and Indemnification

12.1 Limitation of Liability:

- (a) To the maximum extent permitted by law, the Company shall not be liable for any

indirect, incidental, consequential, special, or punitive damages, or for any loss of profits or revenues, whether incurred directly or indirectly, arising from or related to the Affiliate's participation in the Program, even if advised of the possibility of such damages.

- (b) The Company's aggregate liability for any claims under this Agreement shall not exceed the total commissions paid to the Affiliate in the six (6) months preceding the claim.

12.2 Indemnification by the Affiliate:

The Affiliate agrees to indemnify, defend, and hold harmless the Company (including its officers, directors, employees, agents, affiliates, successors, and assigns) from any claims, liabilities, damages, losses, or expenses (including reasonable attorney's fees) arising from:

- (a) The Affiliate's or its subcontractors breach of this Agreement;
- (b) Violation of any applicable law or regulation by the Affiliate;
- (c) Any negligent or wrongful acts or omissions by the Affiliate; or
- (d) Any claim by a third party relating to the Affiliate's activities under this Agreement.

12.3 Indemnification by the Company:

Subject to the limitations in Section 12.1, the Company shall indemnify, defend, and hold harmless the Affiliate from any claims, damages, liabilities, or expenses (including reasonable attorney's fees) arising out of the Company's gross negligence or willful misconduct in connection with this Agreement.

13. Confidentiality

13.1 Confidential Information:

Both Parties agree to maintain the confidentiality of any confidential or proprietary information disclosed during the term of this Agreement. Confidential information includes, but is not limited to, business plans, marketing strategies, financial information, and any other information that is marked or identified as confidential.

13.2 Non-Disclosure:

The Affiliate shall not disclose or use any confidential information for any purpose other than fulfilling its obligations under this Agreement, except as required by law.

13.3 Survival:

The confidentiality obligations shall survive termination of this Agreement for a period of two (2) years.

14. Governing Law, Dispute Resolution, and

Miscellaneous

14.1 Governing Law:

This Agreement shall be governed by and construed in accordance with the laws of Lithuania without regard to its conflict of law principles.

14.2 Dispute Resolution:

Any dispute, controversy, or claim arising out of or relating to this Agreement shall first be subject to good-faith negotiation between the Parties. If unresolved, the dispute shall be submitted to mediation, and if still unresolved, binding arbitration in accordance with the rules of Vilnius court of commercial arbitration shall govern. The venue for arbitration shall be in Vilnius. and the language shall be English.

14.3 Force Majeure:

Neither Party shall be liable for any failure or delay in performance under this Agreement due to causes beyond its reasonable control, including natural disasters, acts of government, labor disputes, or other unforeseen events.

14.4 Assignment:

Neither Party may assign this Agreement or any rights or obligations hereunder without the prior written consent of the other Party, except that the Company may assign this Agreement to a successor entity in connection with a merger, acquisition, or sale of substantially all of its assets.

14.5 Relationship of the Parties:

The Affiliate is an independent contractor and is not an employee, agent, or partner of the Company. Nothing in this Agreement shall be construed to create a joint venture or partnership between the Parties.

14.6 Notices:

All notices or communications required or permitted under this Agreement shall be in writing and deemed delivered when sent via email to the addresses provided in the Affiliate Portal or by certified mail to the respective physical addresses listed by the Parties.

14.7 Severability:

If any provision of this Agreement is found to be unenforceable or invalid, the remaining provisions shall remain in full force and effect. The Parties agree to replace any invalid provision with one that most closely reflects the intent of the original.

14.8 Waiver:

The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of such provision or any other provision herein.

By enrolling in the Pulsetto Affiliate Program, the Affiliate acknowledges that they have

read, understood, and agree to be bound by the terms and conditions set forth in this Agreement.